

		<u>MOTION TO STRIKE</u> Defendant moves to strike Plaintiff's claim for punitive damages. Defendant argues Plaintiff has not alleged the requisite "deliberate, wanton, malicious, wreckful, or willful acts of Defendant" to establish that Plaintiff is entitled to punitive damages. Plaintiff argues that it is not required to prove its punitive damages claim in the complaint and is only required "to allege the ultimate facts upon which that claim rests," which have been alleged. Plaintiff points to paragraphs 16–21, 48, 50 of the Complaint. The Court agrees with Defendant. The Complaint does not state sufficient facts to support a claim for punitive damages against a corporate defendant. (Cruz v. HomeBase (2000) 83 Cal.App.4th 160, 167-168.) The Motion to Strike is GRANTED WITH LEAVE TO AMEND. Defendant to give notice.
107	Jban, LLC v. Carrows California Family Restaurants, LLC, 2024-01371072	Plaintiff Jban, LLC's unopposed Motion for Leave to file a First Amended Complaint is granted pursuant to Code of Civil Procedure §473 and Cal. Rules of Court, Rule 3.1324. The proposed First Amended Complaint should be separately filed and served pursuant to code. Plaintiff to give notice.
108	Leaf Capital Funding v. Strada Collision Centers, 2025-01534127	Plaintiff Leaf Capital Funding, LLC moves for writs of possession against defendants Strada Collision Centers, Inc. and Hamid Hojati for the subject equipment, a 2024 Stealth 350 Down Draft Paint Model RGI-FDD 27 DW. The Court notes that a Default Judgment was entered in plaintiff's favor on April 8, 2026, wherein the Court found that plaintiff shall obtain possession of the 2024 Stealth 350 Down Draft Paint Model RGI-FDD 27 DW, Serial Number 632201. As a writ of possession is a prejudgment remedy and judgment has now been entered against defendants, the applications are DENIED as MOOT. (See Sea Rail Truckloads, Inc. v. Pullman, Inc. (1982) 131 Cal.App.3d 511, 514 ["California's Claim and Delivery law [citations] authorizes the issuance of a pre-judgment writ of

		possession for specific personal property.”]; Simms v. NPCK Enterprises, Inc. (2003) 109 Cal.App.4th 233, 242 [“The claim and delivery law provides a complete prejudgment remedy to recover possession of personal property.”].) Moving party to give notice.
109	Lin v BMW of North America, 2025-01493430	Defendants BMW of North America LLC and BMW Financial Services NA, LLC’s (“Defendants”) Motion for Disqualification of Plaintiff’s Counsel and Plaintiff’s Counsel’s Firm is DENIED. Defendants seek disqualification of Eric McBurney and his firm Tung & Associates. McBurney is no longer with Tung & Associates and has not been associated with them since October 8, 2025. (McBurney Decl. ¶ 7; Tung Decl. ¶ 6.) Defendants contend that McBurney must be disqualified because he previously worked at the law firm that represents Defendants in this action, and that, while at that firm, McBurney represented Defendants in other lemon law cases. Defendants urge that Tung & Associates must also be disqualified because McBurney’s conflict is imputed to the entire firm. Defendants have not presented evidence that McBurney was exposed to information that was material to the representation of Plaintiff in this case. (See Khani v. Ford Motor Co. (2013) 215 Cal.App.4th 916, 922.) Defendants only present the declaration of the principal attorney at Defendants’ counsel’s law firm, Abtin Amir. Amir generally declares that McBurney was privy to strategy discussions, but does not even identify a single case that McBurney handled while at that firm or any specific individuals from BMW that McBurney communicated with. (See, generally, Amir Decl.) There are no declarations from anyone at BMW. Further, McBurney’s tenure at that firm lasted only six months. (Amir Decl. ¶ 5.) In opposing the motion, Plaintiff provides the declarations of McBurney and his (now former)